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Case Number: 25PSCV03018 Hearing Date: September 17, 2026 Dept: H

Madrid, et al. v. Marketing

International, Inc., et al.,

Case No. 25PSCV03018

ORDER ON

DISCOVERY MOTIONS

1. Plaintiff

Braulio Miguel Madrid's Motion to Deem Requested Matters Admitted [Set One] as to Defendant Dan Reichman is

DENIED as moot, except as to sanctions. Madrid's request for sanctions is GRANTED in the sum of \$510.00. Sanctions are payable within 30 days from the date of the notice of ruling.

2. Plaintiff

Braulio Miguel Madrid's Motion to Compel Dan Reichman's Responses to Form and Special Interrogatories [Set One] is

DENIED as moot, except as to sanctions. Madrid's request for sanctions is GRANTED in the sum of \$510.00. Sanctions are payable within 30 days from the date of the notice of ruling. [FN]

3. Plaintiff Braulio Miguel Madrid's Motion to Deem Requested

Matters Admitted [Set One] as to Defendant Marketing International Inc. is DENIED as moot, except as to sanctions. Madrid's request for sanctions is GRANTED in the sum of \$660.00. Sanctions are payable within 30 days from the date of the notice of ruling.

4. Plaintiff

Braulio Miguel Madrid's Motion to Compel Marketing International, Inc.'s

Responses to Form and Special Interrogatories [Set One] is DENIED as moot, except as to sanctions. Madrid's request for sanctions is GRANTED in the reduced sum of \$660.00. Sanctions are payable within 30 days from the date of the notice of ruling.

5. Plaintiff

Braulio Miguel Madrid's Motion to Compel Marketing International Inc.'s Responses to Requests for Production [Set One] is DENIED as moot, except as to sanctions. Madrid's request for sanctions is GRANTED in the sum of \$660.00. Sanctions are payable within 30 days from the date of the notice of ruling.

6. Plaintiff

Braulio Miguel Madrid's Motion to Deem Requested Matters Admitted [Set One] as to Defendant Christian Diego Mara is DENIED as moot, except as to sanctions. Madrid's request for sanctions is GRANTED in the sum of \$510.00. Sanctions are payable within 30 days from the date of the notice of ruling.

7. Plaintiff

Braulio Miguel Madrid's Motion to Compel Christian Diego Mara's Responses to Form and Special Interrogatories [Set One] is DENIED as moot, except as to sanctions. Madrid's request for sanctions is GRANTED in the sum of \$660.00. Sanctions are payable within 30 days from the date of the notice of ruling.

8. Plaintiff

Braulio Miguel Madrid's Motion to Compel Christian Diego Mara's Responses to Requests for Production [Set One] is DENIED as moot, except as to sanctions. Madrid's request for sanctions is GRANTED in the sum of \$510.00. Sanctions are payable within 30 days from the date of the notice of ruling.

Background

Plaintiffs

Braulio Miguel Madrid ("Madrid") and Marion Madrid Sanchez (collectively, "Plaintiffs") allege as follows: On August 23, 2023, Defendants Marketing International, Inc. ("MII") and Dan Reichman ("Reichman") made an unsafe turn and failed to yield to the oncoming traffic that had the right-of-way. The incident occurred at East Garvey Avenue, near the intersection of Garvey Avenue and Valley Boulevard, in the City of El Monte, CA 91732.

On

August 19, 2025, Plaintiffs filed a personal injury complaint, asserting causes of action against MII, Reichman, and Does 1-50 for: (1) General Negligence and (2) Motor Vehicle.

On

May 27, 2026, Plaintiffs amended the Complaint and identified Doe 1 as Christian Diego Mara.

An

OSC: RE Sanctions and Trial Setting Conference is set for September 17, 2026.

1. Madrid's Motion to Deem Requests for Admissions Admitted as to Defendant Dan Reichman

Legal
Standard

"Any party may obtain discovery . . . by a written request that any other party to the action admit the genuineness of specified documents, or the truth of specified matters of fact, opinion relating to fact, or application of law to fact. A request for admission may relate to a matter that is in controversy between the parties."¿(Code Civ. Proc., § 2033.010.)¿ "Within 30 days after service of requests for admission, the party to whom the requests are directed shall serve the original of the response to them on the requesting party, and a copy of the response on all other parties who have appeared"¿(Code Civ. Proc., § 2033.250, subd. (a).)

If a party to whom request for admissions are served fails to provide a timely response, the party to whom the request was directed waives any objections, including based on privilege or the work product doctrine. (Code Civ. Proc., § 2033.280, subd. (a).) The requesting party can move for an order that the genuineness of any documents and the truth of any matters specified in the request be deemed admitted, as well as for monetary sanctions. (Code Civ. Proc., § 2033.280, subd. (b).) The court shall issue this order unless the party to whom the request was made serves a response in substantial compliance prior to the hearing on the motion. (Code Civ. Proc., § 2033.280, subd. (c).) Unlike a motion to compel further discovery responses, a motion to

deem RFA admitted does not have any meet and confer requirements.

It is mandatory that the court “impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion.” (Code Civ. Proc., § 2033.280, subd. (c).)

Discussion

Madrid

moves for an order deeming his requested matters admitted. Madrid also requests sanctions in the amount of \$510.00 against Reichman and his counsel of record.

Madrid's

counsel represents as follows:

Madrid

propounded the Requests for Admissions, Set One (“RFAs”) on Reichman on February 23, 2026. (Nunez Decl., ¶ 4, Ex. A.) Madrid did not receive either a response or a request for an extension by March 27, 2026. (Id., ¶ 5.) On April 9, 2026, after Reichman's counsel requested a 30-day extension three days prior, Madrid's counsel agreed to a brief extension. (Id., ¶¶ 5-6, Exs. B-C.) Reichman has failed to respond to the RFAs as of July 8, 2026. (Id., ¶ 9.)

Reichman's

counsel states that the motion is moot because Reichman has served verified, Code-compliant responses to the RFAs. (Kandarian-Stein Decl., ¶ 10, Exs. D-E.)

In reply,

Madrid argues that the responses are not Code-compliant because Reichman waived every objection by failing to timely respond and yet Reichman provided objection-only responses to certain discovery requests. (Reply at pp. 3-4.) Madrid's argument as to the sufficiency of the responses, however, is more appropriate for a motion to compel further rather than a motion to compel or deem admitted.

The

Court also notes that Reichman's service of the verifications for the discovery responses with his opposition to this motion is sufficient because they were served prior to the hearing.

Accordingly,
the motion to deem the content of Madrid's
Request for Admission, Set One, admitted is DENIED as moot, except as to
sanctions.

Sanctions

Madrid
requests sanctions in the amount of \$510.00 (i.e. 0.5 hours for this Motion and
1 hour for Reply) at a rate of \$300/hour. (Nunez Decl., ¶
10.) Madrid also requests \$60.00 in costs. (Id.)

In
opposition, Reichman's counsel states that Reichman's failure to respond timely
was not intentional: the associate attorney who was responsible for handling
this matter left the firm during the relevant time period and failed to bring
the outstanding discovery to counsel's attention. (Kandarian-Stein Decl., ¶ 4.)
In addition, Madrid's electronic service did not include the correct address
designated by opposing counsel for receipt of service and litigation-related
communications. (Id., ¶¶ 5-8.) Once the outstanding
discovery was brought to counsel's attention, Reichman promptly responded. (Id.,
¶
9.)

The
Court finds Reichman's argument unpersuasive. The Proof of Service for both the
RFAs and this motion were served to Eservice-GKS@g3pmlaw.com, which is listed
in the Court's records as the relevant email address for Reichman. (Nunez
Decl., Ex. A.) Counsel was also notified about the late responses back in
April, and asked for an extension, indicating that the firm was having trouble
getting a hold of Reichman and noting the associate's departure; the email
exchange omits the purported e-service issue. (Nunez Decl., Exs. B-E.) Counsel
offers no explanation for the delay in response between April and August.

As to
Madrid's request, the Court finds both the rate and requested hours to be

reasonable. Thus, the Court grants Madrid's request for sanctions against Reichman and his counsel of record in the sum of \$510.00, including costs. Sanctions are payable within 30 days from the date of the notice of ruling.

2. Madrid's Motion to Compel Dan Reichman's Responses to Form & Special Interrogatories [Set One]

Legal Standard

If a party to whom interrogatories were directed fails to serve a timely response, the propounding party may move for an order to compel responses without objections. (Code Civ. Proc., § 2030.290.) Failure to timely serve responses waives objections to the requests. (Code Civ. Proc., § 2030.290, subd. (a).) A party moving to compel discovery responses under this statutory provision is not required to meet and confer prior to filing the motion. (See Code Civ. Proc., § 2030.290, subd. (b); see also *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 411 [citing *Leach v. Superior Court* (1980) 111 Cal.App.3d 902, 906 for the proposition that "meet and confer" requirement "did not apply when propounding party sought order compelling responses to interrogatories and sanctions for responding party's failure to respond 'within the statutorily permitted time'"].) ¶¶¶¶¶

If the court finds that a party has unsuccessfully made or opposed a motion to compel responses, the court "shall impose a monetary sanction . . . unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2030.290, subd. (c).)

Discussion

Madrid moves for an order compelling Reichman to provide verified responses to its First Set of Form & Special Interrogatories. Madrid also requests sanctions in the amount of \$510.00 against Reichman and his counsel of record.

Madrid's counsel represents as follows:

Madrid

propounded the first set of Form and Special Interrogatories ("FROGs" & "SROGs") on Reichman on February 23, 2026. (Nunez Decl., ¶ 4, Exs. A-B.) Madrid did not receive either a response or a request for an extension by March 27, 2026. (Id., ¶ 5.) On April 9, 2026, after Reichman's counsel requested a 30-day extension three days prior, Madrid's counsel agreed to a brief extension. (Id., ¶¶ 5-6, Exs. C-F.) Reichman has failed to respond to the FROGs and SROGs as of July 8, 2026. (Id., ¶ 9.)

Reichman's

counsel states that the motion is moot because Reichman has served verified, Code-compliant responses to the FROGs and SROGs. (Kandarian-Stein Decl., ¶ 10, Exs. A-B, E.)

In

Reply, Madrid argues that the responses are not Code-compliant because Reichman waived every objection by failing to timely respond and yet Reichman provided objection-only responses to certain discovery requests. (Reply at pp. 3-4.) Madrid's argument as to the sufficiency of the responses, however, is more appropriate for a motion to compel further rather than a motion to compel.

The

Court also notes that Reichman's service of the verifications for the discovery responses with his opposition to this motion is sufficient because they were served prior to the hearing.

Accordingly,

the motion to compel Reichman's verified responses to Madrid's Form and Special Interrogatories, Set One, is DENIED as moot, except as to sanctions.

Sanctions

Madrid requests sanctions in the amount of \$510.00 (i.e. 0.5 hours for this Motion and 1 hour for Reply) at a rate of \$300/hour. (Nunez Decl., ¶ 10.) Madrid also requests \$60.00 in costs. (Id.)

For substantially the same reasons as set forth in connection with Motion #1, the

Court grants Madrid's request for sanctions against Reichman and his counsel of record in the sum of \$510.00, including costs. Sanctions are payable within 30 days from the date of the notice of ruling.

3. Madrid's Motion to Deem Requests for Admissions Admitted as to Marketing International Inc. ("MII")

Legal
Standard

See Motion #1.

Discussion

Madrid moves for an order deeming his requested matters admitted. Madrid also requests sanctions in the amount of \$660.00 against MII and its counsel of record.

Madrid's counsel represents as follows:

Madrid propounded the Requests for Admissions, Set One ("RFAs") on MII on February 23, 2026. (Nunez Decl., ¶ 4, Ex. A.) Madrid did not receive either a response or a request for an extension by March 27, 2026. (Id., ¶
5.) On April 9, 2026, after MII's counsel requested a 30-day extension three days prior, Madrid's counsel agreed to a brief extension. (Id., ¶¶ 5-6, Exs. B-C.) MII has failed to respond to the RFAs as of July 8, 2026. (Id., ¶
9.)

MIl's counsel states that the motion is moot because MII has served verified, Code-compliant responses to the RFAs. (Kandarian-Stein Decl., ¶ 10, Exs. D-E.)

In Reply, Madrid argues that the responses are not Code-compliant because MII waived every objection by failing to timely respond and yet MII provided

objection-only responses to certain discovery requests. (Reply at pp. 3-4.)

Madrid's argument as to the sufficiency of responses, however, is more appropriate for a motion to compel further rather than a motion to compel or deem admitted.

The

Court also notes that MII's service of the verifications for the discovery responses with its opposition to this motion is sufficient because they were served prior to the hearing.

Accordingly,

the motion to deem the content of Madrid's

Request for Admission, Set One, admitted is DENIED as moot, except as to sanctions.

Sanctions

Madrid

requests sanctions in the amount of \$660.00 (i.e. 1 hour for this Motion and 1 hour for Reply) at a rate of \$300/hour. (Nunez Decl., ¶ 10.) Madrid also requests \$60.00 in costs. (Id.)

For substantially the same reasons as set forth in connection with Motion #1, the

Court grants Madrid's request for sanctions against MII and its counsel of record in the amount requested, here, \$660. Sanctions are payable within 30 days from the date of the notice of ruling.

4. Madrid's Motion to Compel MII's Responses to Form & Special Interrogatories [Set One]

Legal

Standard

See

Motion #2.

Discussion

Madrid

moves for an order compelling MII to provide verified responses to its First Set of Form & Special Interrogatories. Madrid also requests sanctions in the amount of \$960.00 against MII and its counsel of record.

Madrid's
counsel represents as follows:

Madrid
propounded the first set of Form and Special Interrogatories ("FROGs" & "SROGs") on MII on February 23, 2026. (Nunez Decl., ¶ 4, Exs. A-B.) Madrid did not receive either a response or a request for an extension by March 27, 2026. (Id., ¶ 5.) On April 9, 2026, after MII's counsel requested a 30-day extension three days prior, Madrid's counsel agreed to a brief extension. (Id., ¶¶ 5-6, Exs. C-F.) MII has failed to respond to the FROGs and SROGs as of July 8, 2026. (Id., ¶ 9.)

MII's
counsel states that the motion is moot because MII has served verified, Code-compliant responses to the FROGs and SROGs. (Kandarian-Stein Decl., ¶ 10, Exs. A-B, E.)

In
Reply, Madrid argues that the responses are not Code-compliant because MII waived every objection by failing to timely respond and yet MII provided objection-only responses to certain discovery requests. (Reply at pp. 3-4.) Madrid's argument as to the sufficiency of the responses, however, is more appropriate for a motion to compel further rather than a motion to compel.

The
Court also notes that MII's service of the verifications for the discovery responses with its opposition to this motion is sufficient because they were served prior to the hearing.

Accordingly,
the motion to compel MII's verified responses to Madrid's Form and Special Interrogatories, Set One, is DENIED as moot, except as to sanctions.

Sanctions

Madrid requests sanctions in the amount of \$960.00 (i.e. 2 hours for this Motion and 1 hour for Reply) at a rate of \$300/hour. (Nunez Decl., ¶ 10.) Madrid also requests \$60.00 in costs. (Id.)

For substantially the same reasons as set forth in connection with Motion #1, the Court will grant Madrid's request for sanctions against MII and its counsel of record. However, here, the Court will reduce the requested hours by one hour, as it determines that two hours for drafting a simple discovery motion is excessive. Thus, the Court grants Madrid's request for sanctions against MII and its counsel of record in the reduced sum of \$660.00, including costs. Sanctions are payable within 30 days from the date of the notice of ruling.

5. Madrid's Motion to Compel Responses to Requests for Production

Legal
Standard

If a party to whom inspection demands is directed fails to serve a timely response, the propounding party may move for an order to compel responses without objections. (Code Civ. Proc., § 2031.300, subd. (b).) Failure to timely serve responses waives objections to the requests. (Code Civ. Proc., § 2031.300, subd. (a).) A party moving to compel discovery responses under this statutory provision is not required to meet and confer prior to filing the motion. (See Code Civ. Proc., § 2031.300, subd. (b); see also *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 411 [citing *Leach v. Superior Court* (1980) 111 Cal.App.3d 902, 906 for the proposition that "meet and confer" requirement "did not apply when propounding party sought order compelling responses to interrogatories and sanctions for responding party's failure to respond 'within the statutorily permitted time'"].)

If the court finds that a party has unsuccessfully made or opposed a motion to compel responses, the court "shall impose a monetary sanction . . . unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2031.300, subd. (c).)

Discussion

Madrid

moves for an order compelling MII to provide verified responses to its First Set of Request for Production. Madrid also requests sanctions in the amount of \$660.00 against MII and its counsel of record.

Madrid's

counsel represents as follows:

Madrid

propounded the first set of Request for Production ("RFPs") on MII on February 23, 2026. (Nunez Decl., ¶ 4, Exs. A.) Madrid did not receive either a response or a request for an extension by March 27, 2026. (Id., ¶ 5.) On April 9, 2026, after MII's counsel requested a 30-day extension three days prior, Madrid's counsel agreed to a brief extension. (Id., ¶¶ 5-6, Exs. B-C.) MII has failed to respond to the RFPs as of July 8, 2026. (Id., ¶ 9.)

MII's

counsel states that the motion is moot because MII has served verified, Code-compliant responses to the RFPs. (Kandarian-Stein Decl., ¶ 10, Exs. C, E.)

In

Reply, Madrid argues that the responses are not Code-compliant because MII waived every objection by failing to timely respond and yet MII provided objection-only responses to certain discovery requests. (Reply at pp. 3-4.) Madrid's argument as to the sufficiency of the responses, however, is more appropriate for a motion to compel further rather than a motion to compel.

The

Court also notes that MII's service of the verifications for the discovery responses with its opposition to this motion is sufficient because they were served prior to the hearing.

Accordingly,

the motion to compel MII's verified responses to Madrid's Request for Production, Set One, is DENIED as moot, except as to sanctions.

Sanctions

Madrid requests sanctions in the amount of \$660.00 (i.e. 1 hour for this Motion and 1 hour for Reply) at a rate of \$300/hour. (Nunez Decl., ¶ 10.) Madrid also requests \$60.00 in costs. (Id.)

For substantially the same reasons as set forth in connection with Motion #1, the Court will grant Madrid's request for sanctions against MII and its counsel of record in the requested amount of \$660. Sanctions are payable within 30 days from the date of the notice of ruling.

6. Madrid's Motion to Deem Requests for Admissions Admitted as to Defendant Christian Diego Mara

Legal Standard

See Motion #1.

Discussion

Madrid moves for an order deeming his requested matters admitted. Madrid also requests sanctions in the amount of \$510.00 against Mara and his counsel of record.

Madrid's counsel represents as follows:

Madrid propounded the Requests for Admissions, Set One ("RFAs") on Mara on June 1, 2026. (Nunez Decl., ¶ 4, Ex. A.) Madrid did not receive either a response or a request for an extension by July 6, 2026. (Id., ¶ 5.) Mara has failed to respond to the RFAs as of July 8, 2026. (Id., ¶ 6.)

Mara's counsel states that the motion is moot because Mara has served verified, Code-compliant responses to the RFAs. (Kandarian-Stein Decl., ¶

10, Exs. D-E.)

In

Reply, Madrid argues that the responses are not Code-compliant because Mara waived every objection by failing to timely respond and yet Mara provided objection-only responses to certain discovery requests. (Reply at pp. 3-4.) Madrid's argument as to the sufficiency of the responses is more appropriate for a motion to compel further rather than a motion to compel or deem admitted.

The

Court also notes that Mara's service of the verifications for the discovery responses with his opposition to this motion is sufficient because they were served prior to the hearing.

Accordingly,

the motion to deem the content of Madrid's Request for Admission, Set One, admitted is DENIED as moot, except as to sanctions.

Sanctions

Madrid

requests sanctions in the amount of \$510.00 (i.e. 0.5 hours for this Motion and 1 hour for Reply) at a rate of \$300/hour. (Nunez Decl., ¶ 7.) Madrid also requests \$60.00 in costs. (Id.)

For substantially the same reasons as set forth in connection with Motion #1, the

Court will grant Madrid's request for sanctions against Mara and his counsel of record in the requested amount, which, here, is \$510. Sanctions are payable within 30 days from the date of the notice of ruling.

7. Madrid's Motion to Compel Mara's Responses to Form & Special Interrogatories [Set One]

Legal

Standard

See

Motion #2.

Discussion

Madrid

moves for an order compelling Mara to provide verified responses to its First Set of Form & Special Interrogatories. Madrid also requests sanctions in the amount of \$660.00 against Mara and his counsel of record.

Madrid's

counsel represents as follows:

Madrid

propounded the first set of Form and Special Interrogatories ("FROGs" & "SROGs") on Mara on June 1, 2026. (Nunez Decl., ¶ 4, Exs. A-B.) Madrid did not receive either a response or a request for an extension by July 6, 2026. (Id., ¶ 5.) Mara has failed to respond to the FROGs and SROGs as of July 8, 2026. (Id., ¶ 6.)

Mara's

counsel states that the motion is moot because Mara has served verified, Code-compliant responses to the FROGs and SROGs. (Kandarian-Stein Decl., ¶ 10, Exs. A-B, E.)

In

Reply, Madrid argues that the responses are not Code-compliant because Mara waived every objection by failing to timely respond and yet Mara provided objection-only responses to certain discovery requests. (Reply at pp. 3-4.) Madrid's argument as to the sufficiency of the responses, however, is more appropriately the subject of a motion to compel further.

The

Court also notes that Mara's service of the verifications for the discovery responses with his opposition to this motion is sufficient because they were served prior to the hearing.

Accordingly,

the motion to compel Mara's verified responses to Madrid's Form and Special Interrogatories, Set One, is DENIED as moot, except as to sanctions.

Sanctions

Madrid requests sanctions in the amount of \$660.00

(i.e. 1 hour for this Motion and 1 hour for Reply) at a rate of \$300/hour.

(Nunez Decl., ¶ 7.) Madrid also requests \$60.00 in costs. (Id.)

For substantially the same reasons as set forth in

connection with Motion #1, the

Court will grant Madrid's request for sanctions against Mara and his counsel of

record in the requested amount, which, here, is \$660. Sanctions are payable within 30 days from the date of the notice of ruling.

8. Madrid's Motion to Compel Mara's Responses to Requests for Production

Legal

Standard

See

Motion #5.

Discussion

Madrid

moves for an order compelling Mara to provide verified responses to its First Set of Request for Production. Madrid also requests sanctions in the amount of \$510.00 against Mara and his counsel of record.

Madrid's

counsel represents as follows:

Madrid

propounded the first set of Request for Production ("RFPs") on Mara on June 1, 2026. (Nunez Decl., ¶ 4, Ex. A.) Madrid did not receive either a response or a request for an extension by July 6, 2026. (Id., ¶ 5.) Mara has failed to respond to the RFPs as of July 8, 2026. (Id., ¶ 6.)

Mara's

counsel states that the motion is moot because Mara has served verified, Code-compliant responses to the RFPs. (Kandarian-Stein Decl., ¶ 10, Exs. C, E.)

In

Reply, Madrid argues that the responses are not Code-compliant because Mara waived every objection by failing to timely respond and yet Mara provided objection-only responses to certain discovery requests. (Reply at pp. 3-4.) Madrid's argument as to the sufficiency of the responses, however, is more appropriate for a motion to compel further rather than a motion to compel.

The

Court also notes that Mara's service of the verifications for the discovery responses with his opposition to this motion is sufficient because they were served prior to the hearing.

Accordingly,

the motion to compel Mara's verified responses to Madrid's Request for Production, Set One, is DENIED as moot, except as to sanctions.

Sanctions

Madrid requests sanctions in the amount of \$510.00 (i.e. 0.5 hours for this Motion and 1 hour for Reply) at a rate of \$300/hour. (Nunez Decl., ¶ 7.) Madrid also requests \$60.00 in costs. (Id.)

For substantially the same reasons as set forth in connection with Motion #1, the

Court will grant Madrid's request for sanctions against Mara and his counsel of record in the requested amount, which, here, is \$510. Sanctions are payable within 30 days from the date of the notice of ruling.

[FN] The Court notes that while

there is a reservation for a hearing on Plaintiff's motion to compel Defendant Dan Reichman's responses to Request for Production [Set One], and Defendant's omnibus opposition references the motion and states he has served responses, no motion to compel Reichman's responses to Request for Production has been filed the Court; only eight discovery motions appear on the Court's electronic docket. Accordingly, as to Defendant Dan Reichman, the Court addresses only the motion to deem requested matters admitted and the motion to compel responses to Form and Special Interrogatories [Set One].